

Request for Proposals for Software and Implementation Services for a Computer Aided Dispatch (CAD) and Records Management System (RMS) Including Jail Management and Property Evidence Software Systems Environment – Enterprise System Preferred



Solicitation Due Date: Monday, October 13, 2026 **Time:** 4:00 p.m. (Pacific Time)

All Proposals must be received by the City of San Leandro and the San Leandro Police Department, (SLPD) by the date and time cited above. It shall be the Proposer's sole risk to assure submission by the designated time.

VENDORS ARE STRONGLY ENCOURAGED TO READ THE ENTIRE SOLICITATION.

Solicitation packages can be obtained by downloading from the City's purchasing website <https://www.sanleandro.org/Bids.aspx>, for further information on obtaining copies of the RFP. Should you experience problems downloading the solicitation, contact Titus Britt at tbritt@sanleandro.org

All questions concerning the RFP **must** be submitted via one email only, to Titus Britt at tbritt@sanleandro.org and BerryDunn (Kate Offerdahl-Joyce – kate.offerdahl-joyce@berrydunn.com) as identified within this solicitation in [Section 1.8](#). Communications with other SLPD staff other than for assistance with downloading the solicitation may disqualify you from the evaluation process.

Forms, Worksheets, and Other Attachments

Attachment A – Proposal Response Forms

(See MS Word document "San Leandro CAD-RMS RFP – Attachment A.docx")

Attachment B – Functional and Technical Requirements/Capabilities

(See MS Excel spreadsheet "San Leandro CAD-RMS RFP – Attachment B.xlsx")

Attachment C1 – Cost Worksheets

(See MS Excel spreadsheet "San Leandro CAD-RMS RFP – Attachment C1.xlsx")

Attachment C2 – Cost Narrative

(See MS Word document "San Leandro CAD-RMS – Attachment C2.docx")

Attachment D – CoSL IT Security Questionnaire

(See MS Excel spreadsheet "CoSL IT Security Questionnaire – Attachment D.xlsx")

Attachment E – CONSULTING SERVICES AGREEMENT

(See MS Word Document - Consulting Services Agreement (CSA) Template (10.21.2025) - Attachment E.dotx)

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1 RFP Introduction and Background

1.1 Introduction

The City of San Leandro (City) is soliciting Proposals from Proposers capable of satisfying the needs for software and consulting services to implement a new software systems environment to address the San Leandro Police Department (SLPD) needs related to a Computer Aided Dispatch (CAD) and Records Management System (RMS) Solution, Jail Management and Property/Evidence Management systems that can be interfaced with or are incorporated as modules within the RMS system. The City recognizes that these needs may be met through a fully integrated enterprise solution (preferred) or through one or more individual system replacements and, therefore, welcomes proposals that address either a preferred enterprise-wide approach or proposals that address one or more of the systems identified for replacement.

In addition to soliciting written responses, this document provides information to assist Proposers in preparing their responses and facilitates the subsequent evaluation and comparison process. In that regard, this RFP:

- Provides information essential to soliciting meaningful recommendations and realistic commitments from the Proposers
- Specifies the desired format and content of Proposals in response to this RFP
- Outlines the SLPD's evaluation and selection procedures
- Establishes a schedule for the preparation and submission of Proposals in response to this RFP

This RFP and the selected Proposal in response to this RFP will be incorporated into the contract resulting from this solicitation.

1.2 About The SLPD

San Leandro, California, is a dynamic and culturally rich city in the East Bay region of the San Francisco Bay area located in Alameda County. With a population of approximately 87,300 residents, it reflects a vibrant mix of ethnic backgrounds that all contribute to the City's unique character. San Leandro is known for its strong neighborhood identity, engaged residents, and a balance of historic charm and modern development. The City continues to grow as a regional hub for families, small businesses, and innovation, supported by a responsive local government and a commitment to inclusive civic life.

Currently, SLPD is allocated a total of 138.41 staff, of which 91 are sworn officer positions and 47.41 are professional staff positions. The organization has several divisions, including Patrol, Criminal Investigations, Support Services, and Professional Standards.

The following table contains statistics related to the SLPD. These statistics are estimates and are provided for planning purposes only. Additional information has been provided in [Table 04: Functional Area Statistics](#).

Table 01: Statistics

No.	Area	Statistic
1	Total SLPD FY26 Budget	Approx. \$49,718,693
2	Population Served	Approx. 87,300
3	Total FTEs	138.41
5	Fiscal Year	July 1 – June 30

1.3 Current Applications Environment

For nearly 20 years, the SLPD has depended on the New World/Tyler Technologies suite as the core system for its RMS, CAD, and Mobile operations. SLPD upgraded to Tyler's Enterprise CAD and Mobile, a platform that provides a modern, browser-based, on-premises solution, however, they had to remain on the legacy RMS platform (identified as LERMS or New World) because no enterprise solution was available at the time the other systems were upgraded. As a result, the current system integration is atypical. The Mobile Data Terminal (MDT) environment is presently performing core records management functions, while the Records Management System (RMS) itself operates with limited standalone records management capability. Proposers submitting solutions that replace only the RMS should account for this configuration and describe how records management functionality would be appropriately reestablished within the proposed RMS solution.

1.4 Project Objectives

The overall goal of this project is to take advantage of the newest technology and harness efficiencies by reviewing business processes and implementing technology to enhance existing business processes performed by the SLPD. The SLPD is seeking to replace its current software environment with a new public safety software system or combination of software systems designed to support the Department's mission-critical operations on a continuous 24x7x365 basis. The proposed solution shall provide high levels of availability, reliability, resiliency, and operational continuity while delivering the functionality necessary to support the Department's core law enforcement, records management, administrative, and reporting processes.

In doing so, the SLPD seeks to address several challenges in the current environment, and gain future efficiencies, including, but not limited to:

- Key Objectives and Outcomes for LERMS:
 - Implement a modern, fully integrated RMS serving as the system of record for all cases, reports, and master data
 - Support configurable workflows, case management, and records review processes aligned with industry best practices
 - Deliver robust reporting, analytics, and compliance support (e.g., National Incident-Based Reporting System (NIBRS), Criminal Justice Information Services (CJIS), retention schedules), and California Incident Based Reporting System (CIBRS)
- Primary Challenges in the Current LERMS Environment:

- Legacy platform nearing end of life with substantially reduced vendor support and limited enhancements
- Heavy reliance on manual workarounds (spreadsheets, Word/PDF reports), leading to inefficiency and data integrity risks
- Inadequate case management, records retention, and audit capabilities, increasing compliance and operational risk
- Limited usability and mobile support, reducing report quality and delaying field documentation
- Difficulty adapting the system to evolving policies, reporting requirements, and operational practices without significant customization
- Key Objectives and Outcomes for CAD/Mobile:
 - Improve real-time mapping, AVL, and GIS reliability to enhance dispatcher and officer situational awareness
 - Enable seamless integration with RMS and mobile platforms to eliminate duplicate data entry and data silos
 - Provide high availability and system resilience (cloud-ready, rapid recovery) to support uninterrupted 24/7/365 dispatch operations
- Primary Challenges in the Current CAD/Mobile Environment:
 - Unreliable mapping and AVL functionality, including crashes and disappearing units, impacting officer safety
 - Intermittent system outages and slow recovery following power disruptions
 - Limited integration with RMS, resulting in siloed data and reduced operational efficiency
 - Outdated user interface and limited configurability, increasing dispatcher workload and training time
 - Insufficient reporting and performance metrics to support operational oversight and continuous improvement

In order to address these challenges and others, the SLPD has initiated a project to adequately plan for, select, and implement a replacement or upgraded Software Systems environment. [Section 2.0 – Project Scope](#), outlines the features and functionality desired in a future system(s), as well as the professional services necessary to implement the software system.

1.5 Definitions

In order to simplify the language throughout this RFP, the following definitions shall apply:

ADDENDA – Written instruments issued by the SLPD prior to the date for receipt of Proposals that modify or interpret the RFP documents by addition, deletions, clarification, or corrections.

CAD AND RMS – Means the Computer Aided Dispatch and Records Management System software system(s) that is described in this RFP and in the Attachments hereto.

CONTRACT DOCUMENTS – The RFP, submitted Proposals, including any diagrams, Addenda, and a form of agreement between the SLPD and the Contractor, including all change orders, insurance certificates, exhibits, amendments, and attachments.

CONTRACTOR – The Contractor(s)/consultant(s) that may be awarded a contract to provide software system(s) and professional services to implement the CAD and RMS System(s) for the SLPD.

DAYS – Means calendar days unless otherwise specified.

JMS – Jail Management System.

LERMS – Law Enforcement Records Management System.

PROJECT – The project to configure and implement the CAD and RMS System(s) for the SLPD as described in this RFP and in the Attachments hereto.

PROJECT SCOPE – Scope of services to be provided by the Contractor(s).

PROPOSAL – A complete and properly signed Proposal to provide goods, commodities, labor, or services for the sum stated and submitted in accordance with the RFP.

PROPOSER or VENDOR – The person, Contractor, corporation, partnership, or other entity submitting a Proposal on items listed in the RFP documents and thereby agreeing to meet the specified Contract terms and conditions if awarded the contract.

POLICE SERVICE TECHNICIAN - Perform non-sworn, technical law enforcement support

RMS – Records Management System.

SLPD – The City of San Leandro Police Department.

SLPD EVALUATION COMMITTEE – The team of SLPD staff that will participate in the review, evaluation, and scoring of proposals and subsequent evaluation processes, including demonstrations and reference checks.

SLPD PROJECT MANAGER – The person designated by the SLPD to be the SLPD Project Manager assigned to act on behalf of the SLPD during the term of the resulting Contract.

SERVICES or WORK – All services to be performed by the Contractor to successfully complete the Project to the satisfaction of the SLPD.

SUBCONTRACTOR or SUBCONSULTANT – Any individual, corporation, company, or other entity that contracts to perform work or render services to a Contractor or to another subcontractor as part of this Contract with the SLPD.

VENDOR – See “PROPOSER.”

1.6 RFP Schedule of Events

The following RFP Schedule of Events represents the best estimate of the schedule the SLPD will follow, which is subject to change at the SLPD’s discretion. Vendors are encouraged to hold the demonstration dates listed. If a component of the schedule is accelerated or delayed, it shall be anticipated that the remaining components may also be adjusted by a similar number of days via RFP Addendum prior to the submittal deadline.

Table 02: RFP Schedule of Events

Event	Estimated Date
RFP Published	Thursday, September 10, 2026
Pre-Proposal Vendor Teleconference	Thursday, September 17, 2026 at 11:00 a.m. PT
Deadline for Questions from Vendors	Wednesday, September 24, 2026 at 4:00 p.m. PT
Deadline for Responses to Questions	Tuesday, October 29, 2026 at 11:00 a.m. PT
Deadline for Registration to Bid	Friday, October 2, 2026 at 4:00 p.m. PT
Deadline for Proposal Submissions	Monday, October 13, 2026 at 4:00 p.m. PT
Shortlist Vendors Notified	Week of November 16, 2026
Vendor Demonstrations	Weeks of January 11 - 29, 2027

1.7 Prequalification of Vendors

The SLPD has not employed a prequalification process. No Vendors are either prequalified or precluded from responding to this RFP. The SLPD has not engaged in any formal discussions or demonstrations with vendors leading up to the issuance of this RFP.

1.8 Minimum Qualifications

In order for Proposals to be evaluated and considered for award, Proposals must be deemed responsive to this RFP as determined in the discretion of the SLPD Evaluation Committee. To be deemed responsive, the submitted Proposal documents shall conform in all material respects to the requirements stated in the RFP, and Proposers shall document and validate the capability to fully perform all requirements defined by the RFP. Factors to be considered in connection with a Proposer's capability to fully perform all requirements of the RFP include, and may not be limited to: experience, integrity, reliability, capacity, and other factors required to provide the Services defined by the RFP.

1.9 Questions and Inquiries

It shall be the responsibility of the Proposers to inquire about any portion of the RFP that is not fully understood or that is susceptible to more than one interpretation prior to the question period closing.

- All questions concerning the RFP **must** be submitted via email only, to Titus Britt at Tbritt@sanleandro.org and the SLPD's consulting partner, BerryDunn (Kate Offerdahl-Joyce – kate.offerdahl-joyce@berrydunn.com).
- Questions and answers will be issued in accordance with [Section 1.10 – Amendments and Addenda](#).

- Only questions and answers publicly published through Addenda shall be binding.

Proposers shall not contact other SLPD staff with any questions or inquiries. Unauthorized contact with any personnel of the SLPD may be cause for rejection of the Proposer's response. The decision to reject a Proposal is solely that of the SLPD.

1.10 Non-Mandatory Pre-Proposal Vendor Teleconference

A non-mandatory Pre-Proposal Vendor Teleconference will be held on Thursday, September 17, 2026 at 11:00 a.m. PT.

Vendors that are interested in participating in the Pre-Proposal Vendor Teleconference shall contact Titus Britt at Tbritt@sanleandro.org and BerryDunn in writing at kate.offerdahl-joyce@berrydunn.com to request the teleconference information.

The format of the Pre-Proposal Vendor Teleconference will be an overview presentation of the RFP, its contents, the RFP Schedule of Events, and additional topics. Following the presentation, Vendors will be able to ask questions related to the RFP or the overall process. The SLPD will attempt to answer all questions at that time, but answers provided shall not be binding. Following the Pre-Proposal Vendor Teleconference, the SLPD will post online the material questions asked and their respective answers in an addendum.

1.11 Amendments and Addenda

All clarifications, corrections, or revisions to this RFP will be documented in an addendum, which will be publicly published to the SLPD purchasing website. Only questions and answers in an addendum shall be considered as part of the RFP. The SLPD reserves the right to revise the RFP prior to [the deadline for Proposal submissions](#). Revisions shall be documented in an addendum and publicly published and/or provided via email.

The SLPD will attempt to publicly publish periodic addenda on a timely basis between the RFP publishing date and the close of the question period. Vendors are responsible for monitoring the SLPD website for the periodic posting of addenda prior to the submittal due date.

1.12 Non-Warranty of RFP Information

Due care and diligence has been exercised in the preparation of this RFP and all information herein is believed to be substantially correct. However, the responsibility for determining the full extent of the exposure to risk and verification of all information herein shall rest solely on those parties making Proposals. The SLPD, its representatives, and its agents shall not be responsible for any error or omission in this RFP, nor shall they be responsible for the failure on the part of any Proposers or their representatives to verify the information herein and to determine the full extent of that exposure.

2 Project Scope

2.1 Functional Areas

The following table contains the list of functional areas of the desired future systems environment.

Table 03: Functional Areas

Functional Areas			
No.	RMS Functional Area	No.	CAD Functional Area
1	RMS Core (Mandatory)	1	CAD Core (Mandatory)
2	RMS - Records	2	CAD Dispatcher
3	RMS - Patrol	3	E911 - EMD - Call Taker
4	RMS - Investigations	4	CAD Supervisor
5	RMS - Property and Evidence	5	GIS
6	RMS - Administration and Training	6	MOBILE (MDT)
7	RMS - Crime Analysis		
9	RMS - Citations		
	JMS Functional Area (Platform or Module requirements)		
10	JMS Core (Mandatory)		
11	JMS		

The list of Functional and Technical Requirement Capabilities contained in **Attachment B – Functional and Technical Requirements/Capabilities** contains the detailed functionality the SLPD requires within each functional area in a future systems environment, as well as general and technical system requirements, and data conversion and interface scope.

The following table contains functional statistics of the SLPD. These statistics are estimates and are provided for planning purposes only.

Table 04: Functional Area Statistics

No.	Functional Area/Metric	Statistic
1	RMS	
	Number of Police Service Technicians	12
	Total Sworn Officers	91
	Professional Staff	35.41

No.	Functional Area/Metric	Statistic
	Traffic Stops, Pedestrian Stops, Citations Issued	Traffic Stops: 3,233 Walking Stops: 81 Traffic Tickets: 613 Municipal Tickets: 56 Parking Tickets: 3,144 Courtesy Tickets: 358
	Number of Laptops Deployed in Vehicles	40
	Number of Vehicles/Patrol Cars in Use	21 Patrol, 2 Traffic and 5 PST
2	CAD	
	Number of 911 calls received (annually)	42,580
	Calls for Service	74,452
3	JMS	
	Number of Jails (Temporary Holding Facility)	1
	Bed capacity of jails	28 total (20 on men side / 8 on women's side)
	Jail bookings	Holding only
Useful Links - San Leandro Police Department: https://www.sanleandro.org/157/Police - Adopted Biennial Budget Fiscal Years 2026 - 2027: https://city-san-leandro-ca-clear.doc.cleargov.com/16041/562577/d		

2.2 Alternate Proposals, Partnerships and Proposers of Subsets of Functionality

Alternate Proposals:

- The SLPD will not be accepting alternate Proposals for evaluation.
- Proposers may submit multiple Proposals for evaluation. For example, if a Proposer offers one or more “branded” products that may meet the needs of the SLPD they are encouraged to separately propose each software package for consideration.
- Software companies that deliver their solution through one or more consulting firms (system integrators) are also allowed to submit more than one Proposal for consideration through differing consulting firms.
- A separate Proposal package submitted in accordance with Section 4 is required in order for the SLPD to accurately evaluate each Proposal independent of the other.

Partnerships:

Proposers are encouraged to establish partnership relationships to fully provide all requirements defined by the RFP.

- Proposers engaged in a partnership relationship shall submit a single proposal in response to this RFP.
- Partnership relationships shall be clearly defined by proposal responses. Such definition shall identify the entity in the partnership relationship deemed to be the Prime Vendor.
- Each Vendor engaged in the partnership shall respond to any and all applicable portions of this RFP that relate to the work that will be performed, or the capabilities provided. For example, each Vendor shall provide references, and each Vendor shall respond to the Company Background and History questions.

Proposers of Subsets of Functionality:

As part of this process the SLPD will be allowing Proposers to submit point solutions (best of breed) and encourages Proposers to participate in this process in order to consider and evaluate a range of marketplace offerings.

- The SLPD recognizes that the scope of functionality in this RFP may be met through a combination of systems that specialize on a modular or functional area basis. The SLPD is willing to consider best-of-breed solutions (“point” solutions), subject to certain conditions as outlined in this section.
- The SLPD has a preference on software solutions that provide for the highest level of fit and facilitate the seamless exchange of information between any disparate systems.
- Proposers are encouraged to propose on a subset of functionality if the proposed software cannot provide functionality for all requested modules. Proposers may propose solutions that address a subset of functionality, provided the software is able to address, at a minimum, one of the following areas:
 - i. CAD System including Mobile Data Terminals (MDT) – (Sections 2 – 2e of Attachment B) – Vendors must also respond to Sections 1, 1a, 5 and 6 – 7
 - ii. RMS Management System (Sections 3 – 3g of Attachment B) – Vendors must also respond to Sections 1, 1a, 5 and 6 – 7.
 - i. JMS (Section 4 – 4a of Attachment B) – Vendors must also respond to Sections 1, 1a, 5 and 6 – 7.

This does not preclude vendors from partnering or addressing more than one of the above areas but is rather intended to identify the minimum scope that must be presented in each proposal.

The SLPD will consider proposers of a subset of functionality on the relative merit of the functionality proposed based on the evaluation criteria laid forth in this RFP and reserves the right to enter into negotiations for one or more proposers in order to achieve a “best-of-breed” solution.

- The Proposer shall identify all third-party systems for which the proposed solution has a vendor-certified integration. For each certified integration, the Proposer shall confirm that the integration has been reviewed and validated by the vendor's technical team and is fully supported by the vendor within the proposed system architecture.
- The SLPD reserves the right to make one or more awards to competing Proposers for subsets of functionality as a result of this RFP. In the event the SLPD should make awards to one or more competing Proposers, it shall be expected that additional discussion will take place between the SLPD and the Proposers to define requirements and an approach to building an integration or interface between the selected systems. In such instance, the SLPD expects that the Proposers will work together as necessary to develop the necessary integration once one has been identified.

2.3 SLPD and Project Staffing

The SLPD intends to have functional and technical resources available during Project implementation, though it is noted that the SLPD does not anticipate dedicating staff full-time to the implementation in addition to managing their core job responsibilities. This applies to both functional resources as well as technical resources internal to the SLPD. It is anticipated that some functional leads will serve as the functional lead, or a subject matter expert, across one or more modules – particularly within the financial modules of a future system – during the implementation process.

Staffing considerations are a consideration for the SLPD in terms of both the implementation process as well as supporting the software once in an operations mode. Vendors are encouraged to submit questions to the SLPD during the RFP questions period to solicit such additional information as is necessary to adequately estimate the resource commitments that would be expected of the SLPD during implementation, and post go-live for ongoing support of the system(s). Additional resource planning will be performed based upon the selected Proposer(s).

Proposers shall clearly indicate in the proposal responses the estimated level of SLPD resource involvement in the implementation process, in order to allow the SLPD to perform adequate planning. The SLPD will utilize the response to Proposers' Resource Hour Estimates in Attachment A, Section 3, of Proposals as an input into the staffing plan the SLPD develops, and requests that Proposers clearly articulate estimated staffing considerations in their responses.

2.4 Deployment Model

The SLPD is open to considering various deployment models and has structured the RFP to allow for the evaluation of the deployment model as but one factor in the overall procurement process. The SLPD wishes to evaluate the greatest range of marketplace offerings feasible through this process.

The SLPD recognizes there are many factors contributing to a comparison of cost Proposals for these various deployment methods including needed infrastructure and/or hardware costs, the potential for reduced hardware costs in hosted/SaaS models, a particular Proposer's approach to managing upgrades, and technical staffing needs. The SLPD is open to considering all deployment models in light of the breadth of functionality and available solutions in the marketplace to address those functional areas. The SLPD will consider, in no particular order, the following deployment models:

- a. On Premise (locally hosted at the SLPD, perpetual licenses)

- b. Proposer-hosted (hosted and managed by the Proposer within a FedRAMP-authorized government cloud environment, such as Microsoft Azure Government, AWS GovCloud, or equivalent; perpetual licenses
- c. Software as a Service (SaaS or subscription-based models)

If the Proposer offers multiple deployment options, the costs for each option shall be presented separately to allow the SLPD to evaluate and compare the total cost of ownership associated with each deployment model. Cost sheets have been provided under Attachment C1 – Cost Worksheets for the SaaS deployment model.

This solicitation is not a bid process nor will it follow a lowest-priced responsive Proposal process, but will be based on most advantageous Proposal(s) utilizing the Evaluation Criteria listed in the RFP, including the review of life cycle costs (i.e., recurring costs, hardware, third-party licenses, etc.).

In developing proposals, Proposer's shall clearly define the proposed deployment model including the licensing model as well as any perceived benefits of the proposed model. In the event two or more products are proposed under the same proposal (e.g., through a partnership or offered by the same company) the Proposer shall clearly indicate in both the technical proposal (Attachment A, Section 2) and cost proposal (Attachment C1) the deployment model for each proposed software product.

The SLPD does not have a preference as to a specific hosting location but does have a requirement toward the hosting being within the contiguous United States. Vendors are requested to specify the hosting location in proposal responses, specifically as part of Attachment A, Section 2 to proposal responses (please see Attachment A for further instruction).

Proposers shall complete and submit the CoSL IT Security Questionnaire, included as Attachment D, to this RFP. Information provided in the questionnaire will be considered as part of the City's evaluation of the proposed solution, hosting environment, security controls, and overall technical approach.

2.5 Number of Users

The following user counts by module contained in the table below are estimates and are provided for planning purposes only. The number of users represents the anticipated future number of users of a new system.

Table 05: Number of Users

Department Roles	Number of Users
Sworn officers	100
Police Service Technicians and Supervisor	15
Sergeants/Command Staff	25
Professional staff	45
Analysts / crime intel	2
IT staff	5
Local / County Prosecutor interface users	1

2.6 Potential Phasing and Target Live Dates

The SLPD requests that offerors provide potential phase start and target go-live dates in proposal responses per Attachment A, Section 4. These dates should be estimates based on anticipated resource requirements and dependencies between functional areas. These dates are subject to negotiation, but the RMS will be the first to be implemented. The SLPD anticipates that implementation activities would begin in January 2027. The SLPD would like to target January 2028 as a potential go-live date for RMS, July 2028 as a go-live date for CAD and JMS. The SLPD follows a July 1 – June 30 fiscal year.

2.7 Project Management Documentation

The following information establishes the expectation of the minimum level of project management documentation to be provided by Proposers as a part of, but not exclusively, the resulting implementation services offered. As part of the implementation scope, following signing of a contract, the selected Contractor(s) shall develop and provide the SLPD with the following items:

- Project Management Plan: a detailed Implementation Project Plan that, at a minimum, includes the following:
 - Objectives
 - Deliverables and Milestones
 - Project Schedule
 - Resource Management Processes
 - Scope Management Processes
 - Schedule Management Processes
 - Risk Management Processes
 - Quality Management Approach
 - Communication Management Approach
 - Organizational Change Management Approach
 - Status Reporting
- Data Conversion Plan
- Training Plan
- System Interface Plan
- Testing and Quality Assurance Plan
- Pre- and Post-Implementation Support Plan
- Change Management Plan
- System Documentation
- Risk Register

The proposer shall identify and confirm that they will provide a shared secure site accessible by both the proposer and the City and SLPD, and any other City designee to share project information.

Additional documentation about each Plan may be found in Attachment A, Section 3, attached to this RFP.

2.8 Budget

The SLPD is committed to funding the one-time and recurring annual costs for the acquisition of the software. The SLPD has established a budget for this project but also intends to use the proposals received through this process to inform the budget development process. The SLPD has performed initial, high-level estimations, including professional services and recurring maintenance/subscription costs. Recognizing the likelihood of multiple awards as a result of this RFP, a final budget will be programmed based on the results of this RFP and final contract negotiations.

The SLPD is sensitive to the total costs and has listed cost as one of the several evaluation criteria in the RFP; however, this is not an opportunity to identify the lowest priced solution. This RFP opportunity is being presented as a best value solicitation, and not a lowest priced bid, opportunity.

2.9 Personnel

All of Contractor's personnel providing goods and services under the contract shall possess the necessary skills, experience, and knowledge, to perform their assigned duties. In the event assigned personnel are providing non-conforming or unsuitable services, the SLPD shall notify Contractor and provide the opportunity to rectify the deficiency. If unable to cure the nonconforming services, Contractor shall remove the identified personnel from the project and replace the Contractor's personnel that the SLPD deems unsuitable for the project with a resource possessing the necessary skills, experience, and knowledge, to perform their assigned duties in a satisfactory manner. Any personnel assigned to the project will be required to meet all SLPD requirements, including CJIS requirements, and will be approved by SLPD prior to assignment to the project. The Contractor shall be responsible for all costs associated with meeting these requirements, including background checks, fingerprinting, training, certifications, and related fees.

Software Upgrades

The SLPD shall be entitled to any and all upgraded versions of the software covered in the contract that becomes available from the Contractor. Such upgrades shall be provided at no cost to the SLPD so long as a valid maintenance and support agreement, or if applicable software as a service licensing agreement, is in place.

2.10 Performance Review

The Contractor may be required to meet with the SLPD's Project Manager not less than once per quarter to conduct a performance review of the Contractor. These meetings will be either in person at SLPD offices, or via teleconference or web-conference. This performance review will include a review of the pricing, delivery performance, customer service, and improving operational efficiencies. In addition, the performance review shall extend into the 90 days after go-live, also known as the hyper care or warranty period.

3 Proposal Evaluation and Award

3.1 Evaluation Process

The following subsection outlines the intended proposal evaluation process the SLPD has identified. The SLPD reserves the right to deviate from this process at its own discretion, and to (i) negotiate any and all elements of the RFP, (ii) amend, modify, or withdraw the RFP, (iii) revise any requirements under the RFP, (iv) require supplemental statements of information from any Proposer, (v) extend the deadline for submission of Proposals, (vi) cancel, in whole or part, this RFP if the SLPD deems it is in its best interest to do so, (vii) request additional information or clarification of information provided in any Proposal without changing the terms of the RFP, (viii) award this project in whole or in part to a vendor other than the highest scoring vendor based on the determination of the best overall value and/or fit for the SLPD, and/or (ix) waive any portion of the selection process in order to accelerate the selection and negotiation with the top-ranked Proposer. The SLPD may exercise the foregoing rights at any time without notice and without liability to any Proposer, or any other party, for expenses incurred in the preparation of responses hereto or otherwise.

- a. **Vendor Shortlist:** The SLPD Evaluation Committee will initially review and evaluate each Proposal received to determine the Proposer's ability to meet the requirements of the SLPD. The evaluation criteria described herein will be the basis for evaluation. The Evaluation Committee will determine the Proposers best suited to meet the needs of the SLPD based on the scoring of the evaluation criteria. These Vendors will form the Vendor Shortlist.
- b. **Vendor Demonstrations:** The SLPD, at its sole discretion, reserves the right to have in person system demonstrations with those Proposers on the Vendor Shortlist, or any other Proposer. Demonstrations may be video recorded and shall involve a scripted demonstration. The schedule, scripts, and demonstration requirements will be provided with the invitation to participate in demonstrations. A Pre-Demonstration Vendor Teleconference will take place for those Vendors that have been shortlisted, and Proposers will have an opportunity to review the format of the demonstrations and ask questions related to procedure and specific demonstration scenarios. Vendors that are invited to participate in demonstrations are advised that the provided scripts must be strictly adhered to while presenting. Optional modules or functionality shall not be presented if they fall outside the scope of requested functionality or that functionality which has been proposed by the Proposers. The proposed version of the software must be shown and must not include any software that is under development or in beta testing or anything that has not been priced as part of their written submitted proposal. Evaluation Committee members will view the demonstrations, and additional SLPD staff may also be in attendance to observe and provide informal feedback.
- c. **Reference Checks:** The SLPD may employ a process of contacting references provided through Proposers' proposals. This process may include teleconference meetings, web conferences, and in-person meetings with references. The SLPD reserves the right to conduct reference checks at any point in the evaluation process, and to contact other known users of the proposed system(s) beyond just those references provided.

- d. **Best and Final Offer and Request for Clarification:** A Best-and-Final-Offer process may be initiated if it is determined to be in the best interest of the SLPD. Such process may be initiated following the identification of the Vendor Shortlist or at any other evaluation process step. Additional processes of scope and cost clarification may be employed as part of the evaluation process if it is deemed to be in the SLPD's best interest.

3.2 Clarification and Discussion of Proposals

The SLPD may request clarifications and conduct discussions with any Proposer that submits a Proposal, including requesting additional information. The SLPD reserves the right to select the Proposal or Proposals that it believes is the most responsive as determined by the SLPD Evaluation Committee, which will best serve the SLPD business and operational requirements, considering the evaluation criteria set forth below. Proposers shall be available for a system demonstration to SLPD staff on dates specified in [Table 02](#) or as otherwise requested by the SLPD if selected for system demonstrations. Failure of a Proposer to respond to such a request for additional information, clarification, or system demonstrations may result in rejection of the Proposal. The initial evaluation may be adjusted because of a clarification under this section. The SLPD reserves the right to waive irregularities in the Proposal content or to request supplemental information from Proposers.

3.3 Evaluation Criteria

As described in the preceding Evaluation process sub-section, the SLPD intends to follow a cumulative approach to scoring based on key evaluation activities (e.g., scoring is conducted in a progressive manner, following various steps in the process). The SLPD hereby reserves the right to evaluate, at its sole discretion, the extent to which each Proposal received compares to the stated criteria. Vendor proposals shall be evaluated in accordance with the following criteria, subject to variation at the sole discretion of the SLPD:

3.3.1 Short-List Identification: The SLPD intends to utilize the criteria presented in Table 08 following the Evaluation Team's review of Proposals.

Table 08: Short-List Identification Criteria

Criteria	Description	Points
Functionality	This criterion considers but is not limited to the following: - The Proposer's written responses to the Functional and Technical Requirements for proposed functional areas and overall software solution. - The ability for the proposed software to integrate with the SLPD systems environment.	35
Technical	This criterion considers but is not limited to the following: - Alignment of the proposed software to the SLPD's technical specifications. - The Proposer's written response to each Potential Interface. - The level of integration among proposed functional areas. - Adherence to industry standard Software Development Lifecycle (SDLC) and Cybersecurity best practices - The completeness and adequacy of the Proposer's responses to Attachment D – CoSL IT Security Questionnaire, including the	15

Criteria	Description	Points
	security controls applicable to the proposed solution, hosting environment, third-party services, and artificial intelligence capabilities, if applicable.	
Data Migration	This criterion considers but is not limited to the following: • Data Migration process methodology • The proposed resources hours among SLPD and Proposer teams. • Proposer support to assist SLPD and City with developing and implementing the migration process	10
Approach	This criterion considers but is not limited to the following: • The described approach to implement an enterprise system to achieve the SLPD's goals and objectives. • The alignment of the proposed implementation timeline to the SLPD's desired timeline. • The distribution of implementation tasks among SLPD and Proposer teams. • The proposed resources hours among SLPD and Proposer teams. • The Proposer's approach to key implementation tasks including but not limited to data conversion, testing, and training. • The Proposer's planned ongoing support and maintenance services.	20
Proposer Experience	This criterion considers but is not limited to the following: • The Proposer's experience delivering the services requested in the RFP. • The Proposer's experience with similar implementations for comparable organizations. • The Proposer's experience deploying comparable interfaces to the SLPD's related applications.	15
Proposed Staff Experience	This criterion considers but is not limited to the following: • The experience of named staff delivering services requested in the RFP. • The experience of named staff with similar implementations for comparable organizations. • The qualifications of named staff to deliver the services requested in the RFP with a focus on business process optimization.	5

3.3.2 Finalists Identification: The SLPD intends to utilize the criteria presented in Table 09 following the demonstrations by Short-List Proposers.

Table 09: Finalist Identification Criteria

Criteria	Description	Points
Functionality Demonstrated	This criterion considers new information learned through Proposer demonstrations including but not limited to the demonstrated user interface and the alignment of demonstrated functionality with preferred business processes.	15
Technical Capabilities	This criterion considers new information learned through the Technical Discussion as part of Proposer demonstrations as well as other sessions. The City may also seek clarification or validation of Attachment D responses during the Technical Discussion or demonstrations.	5
Approach Discussion	This criterion considers new information learned through the Implementation Approach Discussion as part of Proposer demonstrations as well as other sessions.	5
Experience Discussion	This criterion considers new information learned through the Company Overview Discussion as part of Proposer demonstrations as well as other sessions.	5

3.3.3 Preferred Vendor Identification: The SLPD intends to utilize the criteria presented in Table 10 following the completion of reference checks and any site visit.

Table 10: Preferred Vendor Identification Criteria

Criteria	Description	Points
Reference Feedback	This criterion considers the feedback received from references related to the Proposer's performance in the implementation including meeting project objectives and timelines, as well as the knowledge, skills, and experience of implementation staff; capabilities of the software; and ongoing Proposer performance with support and maintenance.	20
Comparable References	This criterion considers the relevance of references related to organization size and location, structure of the organization, entity type (e.g. SLPD/town/village), comparable scope, similar software version, and deployment model.	10

3.3.4 Cost Point Allocation: The SLPD will evaluate cost proposals based upon this criteria. Cost points will be applied at the timing in the evaluation process as may determined by the Evaluation Team. The SLPD reserves the right to review cost proposals at any stage in the process to ensure pricing is within internal budget planning ranges. Cost points may be refined or replaced in the event of a subsequent Request for Clarification or Request for Best and Final Offer (BAFO).

Table 11: Cost Point Criteria

Criteria	Description	Points
Cost	This criterion considers, as applicable, the price of the software licensing, services, and terms of any offered ongoing maintenance and support (including applicable service level agreements, disaster recovery, etc.) proposed in response to the information solicited by this RFP. Proposers will	40

Criteria	Description	Points
	be evaluated on their pricing scheme, as well as on their price in comparison to the other proposers. In evaluating cost, the SLPD may evaluate on a fully loaded ten-year cost of ownership. Fully loaded is defined to include (but is not limited to): software purchase and implementation costs; ongoing support and service costs; hardware costs; and associated hardware support costs. The SLPD reserves the right to add their own estimates of the costs (including any anticipated savings) associated with the required level of internal staffing (business users and IT staff) for implementation and for ongoing support, hardware and overhead costs and savings, and may rely on the Proposer's resource estimates as a basis for their calculations. Proposers of point solutions will be compared against other proposals for the respective functional area group.	

3.4 No Obligation, Right of Rejection, and Multiple Award

The inquiry made through this RFP implies no obligation on the part of the SLPD. This RFP does not constitute an offer or a contract with any Proposer or other party. The SLPD reserves the right to reject any or all Proposals, in whole or in part, and to waive any informality in proposals received, deemed to be in the best interest of the SLPD or to accept or reject all or any part of any Proposal. Proposals deemed to be received from debarred or suspended Vendors will be rejected. The SLPD may reject any Proposal that is not responsive to all of the material and substantial terms, conditions, and performance requirements of this RFP. The SLPD further reserves the right to award all, part, or none of the components/functional areas included in this RFP. In addition, the SLPD reserves the right to make one or more awards to competing Proposers for subsets of functionality as a result of this RFP. The SLPD also reserves the right to refrain from making an award if it determines it to be in its best interest. The SLPD reserves the right to abandon the Project and/or to re-advertise and solicit other Proposals. The SLPD reserves the right to create a Project of lesser or greater expense than described in this RFP or the Proposer's reply, based on the component prices or scope submitted. The SLPD reserves the right to cancel this solicitation or to change its scope if it is considered to be in the best interest of the SLPD.

3.5 Offer Held Firm

Unless otherwise specified, all bids/proposals submitted shall be valid for a minimum period of 180 calendar days following the date established for receiving bids/proposals. At the end of the 180 calendar days the bid/proposal may be withdrawn at the written request of the bidder/proposer. If the bid/proposal is not withdrawn at that time, it remains in effect until an award is made or the solicitation is cancelled.

3.6 Contract Negotiation

After final evaluation, the SLPD may negotiate with the Proposer(s) of the preferred vendor(s) identified as a result of the evaluation process or exercise their option to negotiate with the proposer who provides the best overall value and/or fit for the SLPD. If any Proposer fails to negotiate in good faith, the SLPD may terminate negotiations and negotiate with the Proposer of the next highest-ranked Proposal or terminate negotiations with any or all Proposers. If contract negotiations are commenced, they may be held at SLPD office locations or via teleconference. If contract negotiations

are held, the Proposer will be responsible for all of Proposer's costs including, without limitation, its travel and per diem expenses and its legal fees and costs.

3.7 Failure to Negotiate

If the selected Proposer:

1. Fails to provide the information required to begin negotiations in a timely manner
2. Fails to negotiate in good faith
3. Indicates it cannot perform the contract within the designated timeframes or within budgeted funds available for the Project
4. If the Proposer and the SLPD, after a good-faith effort, cannot come to terms; then

The SLPD may terminate negotiations with the Proposer initially selected and commence negotiations with the next highest-ranked Proposer. At any point in the negotiation process, the SLPD may, at its sole discretion, terminate negotiations with any or all Proposers.

3.8 Contract Type

The contract resulting from this RFP shall be in form and content satisfactory to the SLPD and shall include, without limitation, the terms and conditions provided for in this RFP and any sample agreement provided by the SLPD, and such other terms and conditions as the SLPD deems necessary and appropriate. The resulting contract from this RFP shall be a not-to-exceed based contract, subject to the Payment Terms identified in Attachment C2 for the various cost types.

The standard of performance for the contract resulting from this RFP shall be in accordance with the highest applicable standards in the financial information software industry. The initial contract price will be based on prices submitted by the Selected Proposer, subject to contract negotiations with the SLPD, and shall remain firm for the initial term of the contract. Price adjustments may be negotiated at the request of either party in the extension periods with mutual agreement of the parties. A party proposing a price change in an extension period must notify the other party at least one-hundred eighty (180) days prior to the commencement of any extension period.

3.9 Contract Changes

Written requests for price changes, during the implementation process or thereafter, resulting from a change of scope, as initiated or requested by the SLPD, must be submitted in writing to the SLPD via Change Order. Any increase will be based on the Contractor's actual cost increase only, as shown in written documentation. All Change Order requests must be in writing, must not constitute increases in profit, and must contain data establishing or supporting the increase in cost. At the option of the SLPD, (1) the request may be granted; (2) the Change Order may be modified to include a greater, or lesser, scope; or (3) the SLPD and Proposer may continue with the Contract without change. The SLPD will accept or reject all such written requests within ninety (90) days of the date of receipt of Contractor's request for price increase or receipt of proper written documentation, whichever is later.

If a price increase is approved, the SLPD will issue an amendment or change order to the contract specifying the date the increase will be effective. All Services and related accessories are to be billed at prices in effect at the time the service was rendered or order was placed. If a price increase is

rejected, the Contractor will be notified and, at the option of the SLPD, the Contract may be (1) cancelled and the solicitation may be re-advertised; or (2) continued without change.

All other Contract changes will be effective only on written agreement signed by both parties.

3.10 Contract Approval

The SLPD's obligation will commence only following the SLPD Commission's approval of a Contract and the parties' execution of the Contract. Upon written notice to the Contractor, the SLPD may set a different starting date for the Contract. The SLPD will not be responsible for any work done or expense incurred by the Contractor or any subcontractor, even such work was done or such expense was incurred in good faith, if it occurs prior to the Contract start date set by the SLPD.

4 Submittal Response Format

4.1 General Instructions

The following instructions must be followed by Proposers submitting Proposals. Offers that do not comply with all instructions contained herein may be disqualified:

1. **Deadline:** The deadline for Proposal submissions is established in [Section 1.5](#). It will be the sole responsibility of the Proposer to submit its Proposal to the SLPD before the closing deadline.
2. **Hard Copy Proposals:** No hard copy proposals will be accepted for proposal submission.
3. **Electronic Submission and Media Proposal File Formats and Naming:** Proposers shall submit one (1) electronic version of the Technical Proposal and one (1) electronic version of the Price Proposal. The following table provides the required file formats and naming conventions for the electronic media files. [See Proposal Registration and Submission Requirements below.](#)
4. **Email Proposals:** No emails will be accepted for proposal submission.

Table 12: Proposal Naming and File Formats

Proposal Section	Recommended File Naming Convention	Required File Format
Technical Proposal (Inclusive of Attachments A, B and any Exhibits/Attachments)	"(<u>Proposer Name</u>)" Technical Proposal	All files combined into one (1) searchable Adobe PDF
Attachment B – Functional and Technical Requirements	"(<u>Proposer Name</u>) Proposal Response to Attachment B"	To be submitted in Microsoft Excel format, in addition to above PDF format
Attachment D – CoSL IT Security Questionnaire	"(<u>Proposer Name</u>) Proposal Response to Attachment D"	To be submitted in Microsoft Excel format, in addition to above PDF format
<i>Attachment E – Consulting Services Agreement (CSA)</i>	"(<u>Proposer Name</u>) Proposal Response to Attachment E"	To be submitted in one (1) searchable Adobe PDF
Price Proposal (Inclusive of Attachments C1 and C2, Proposer's Standard Travel and Expense Policy, and any Appendices)	"(<u>Proposer Name</u>)" Price Proposal	All files combined into one (1) searchable Adobe PDF
Attachment C1 – Cost Worksheets	"(<u>Proposer Name</u>) Proposal Response to Attachment C1"	To be submitted in Microsoft Excel format, in addition to above PDF format

1. **Amendment of Proposals:** Proposers may amend Proposals prior to the deadline set for receipt of Proposals. In the event an Addenda is issued and a Proposer has previously submitted a Proposal in response to this RFP, the Proposer shall notify the SLPD via email of

the need to submit an amendment, and clearly outline the reasons in writing. No amendments will be accepted after the deadline unless they are in response to a request of the SLPD.

2. **Confidential Information:** Proposers shall clearly mark any information or graphics that are considered to be confidential as such within Proposal submissions. Any such designation as confidential shall be specific as to the portions of the proposal deemed confidential by the vendor, and not the entire Proposal response.

Proposal Registration and Submission Requirements

Mandatory Registration

All Proposers intending to submit a proposal in response to this Request for Proposals (RFP) must complete the City's required registration process no later than **4:00 PM Pacific Time (PT) on Friday, October 2, 2026**, which is nine (9) calendar days prior to the proposal submission deadline of October 13, 2026 at 4:00 PM PT.

Proposal submissions are due no later than 4:00 p.m. Pacific Time (PT). No exceptions will be granted for late submissions. All required proposal documents must be uploaded by the 4:00 p.m. PT deadline. In addition, the proposer shall submit an email no later than 5:00 p.m. PT confirming the items that were uploaded as part of its proposal submission. Failure to upload all required documents by 4:00 p.m. PT may result in the proposal being deemed non-responsive.

To register, Proposers must complete and submit the Registration Form available at:

[City of San Leandro Police Department RFP Registration Form](#)

Upon successful submission of the Registration Form, the Proposer will receive an email confirming that their registration has been accepted. Only registered Proposers will be authorized to submit proposals.

Secure Proposal Submission Process

Following successful registration and confirmation, the City will provide the registered Proposer with a link to a secure electronic file transfer and upload site for proposal submission.

Proposers may submit one or more proposals through the secure upload site; however, **each proposal submitted shall constitute a complete and standalone proposal package**. Partial submissions, supplemental uploads intended to complete a previously submitted proposal, or submissions that require the City to combine multiple uploads into a single proposal package may be deemed non-responsive at the City's sole discretion.

The Proposer is solely responsible for ensuring that all required documents, forms, certifications, attachments, and supporting materials are included within each proposal package submitted through the secure upload site.

5 Upload Assistance and Technical Issues

Any questions regarding the registration process, access to the secure upload site, file upload procedures, or technical issues encountered during submission shall be directed to:

Titus Britt

tbritt@sanleandro.org

Proposers are strongly encouraged to complete uploads well in advance of the submission deadline. The City shall not be responsible for delays, transmission failures, connectivity issues, or other technical problems experienced by the Proposer.

6 Failure to Register

Failure to complete the mandatory registration process by **4:00 PM Pacific Time (PT) on October 2, 2026** will result in the Proposer being ineligible to submit a proposal and may cause any subsequent submission to be rejected as non-responsive.

4.2 Technical Proposal Organization Guidelines

Proposers are instructed to insert the completed Section forms (Attachment A – Proposal Response Forms) in the corresponding Section sections as a part of their response to the Technical Proposal. **The SLPD expects that Proposers will include additional proposal content beyond simply completing the forms and worksheets provided through this RFP.** The following table contains the organization guidelines for Proposal responses.

Table 14: Technical Proposal Organization Guidelines

Proposal Section No.	Technical Proposal Section
Section 1	Company Introduction
Section 2	Software Solution
Section 3	Project Approach and Implementation Methodology
Section 4	Key Proposed Personnel and Team Organization
Section 5	Project Schedule
Section 6	System and Application Architecture
Section 7	Data Conversion Plan
Section 8	Security and Software Hosting
Section 9	Testing and Quality Assurance Plan
Section 10	Training Plan
Section 11	References
Section 12	Sample Contracts, Warranty, and Escrow
Section 13	Exceptions to Project Scope and Contract Terms
Section 14	Functional and Technical Requirements Response
Interface/Integrations	Interface/Integration Requirements Response
Security Questionnaire	CoSL IT Security Questionnaire Response

4.3 Content for Sections 1 – 14

1. Sections 1 – 13

- i. Attachment A – Proposal Response Forms: Attachment A is a Word document that serves as the required response template for this RFP. It includes detailed instructions, forms, tables, and questions that Proposers must complete as part of their submission, as well as specific requirements related to the Services for the Project. Proposers shall use Attachment A to structure their response by completing each applicable form and inserting it into the corresponding tabbed section (Sections 1–13) of their Proposal. Proposals must be organized in a tabbed format consistent with the structure defined in Attachment A. In addition to completing the required forms, Proposers shall provide supplemental narrative, diagrams, and/or images within each tab as necessary to fully describe and support their proposed approach and solution.

2. Attachment B: Section 14

- i. Attachment B – Functional and Technical Requirements/Capabilities is an Excel document that provides detailed requirements and capabilities related to software features and functions, as well as potential interfaces and data conversion requirements. This tab is to include Proposer's response as detailed in Attachment B – Functional and Technical Requirements/Capabilities, which is an Excel document to be filled out by the Proposer. Proposers are to provide Attachment B in both Excel format, and also in PDF format appended to the responses to Attachment A Sections 1-13.

3. Attachment D: Security Questionnaire

- i. Attachment D – CoSL IT Security Questionnaire is an Excel document that serves as a required response template for this RFP. The questionnaire requests information regarding the Proposer's organizational, application, infrastructure, data protection, access management, business continuity, incident response, vulnerability management, third-party, and artificial intelligence security practices. Proposers shall complete each applicable question and provide an explanation for any response identified as "No" or "Not Applicable." The completed questionnaire shall be submitted in both Microsoft Excel format and PDF format appended to the Technical Proposal. Information provided in Attachment D will be considered as part of the City's evaluation of the proposed solution, hosting environment, security controls, and overall technical approach

4. Interface/Integration Requirements Response

4.4 Price Proposal

The Proposer's Price Proposal shall consist of two sections, as further described below:

1. The completed Cost Worksheets as contained in Attachment C1 – Cost Worksheets. Proposers shall not modify the worksheets in any way.
2. A narrative description of the proposed costs in response to Attachment C2 – Cost Narrative, including:
 - The Proposer's pricing as provided in vendor's standard quoting/pricing format.

- The Proposer's standard travel and expense policy.

7 Terms and Conditions

CONTRACTUAL REQUIREMENTS & TERMS AND CONDITIONS

The following terms and conditions apply to this RFP solicitation process and will be incorporated into the resulting contract as applicable. The SLPD requires the resulting contract to include the RFP and proposal response as exhibits.

7.1 Permits and Codes

The selected Consultant shall comply with all laws, codes, rules and regulations of the State, County, City and school districts, applicable to the work to be performed at the City and school districts' locations. The Consultant, who shall pay all lawful charges, shall obtain all permits lawfully required.

7.2 City of San Leandro Living Wage Ordinance

The San Leandro Municipal Code Title 1, Chapter 6, San Leandro's Living Wage Ordinance (LWO), provides that Consultants who engage in a specified amount of business with the City (except where specifically exempted) under contracts which furnish services to or for the City during the City's fiscal year shall comply with all provisions of this ordinance. The LWO requires a City Consultant to provide City mandated minimum compensation to all eligible employees, as defined in the Ordinance. In order to determine whether this contract is subject to the terms of the LWO, the selected Consultant must submit a completed self-verification form. Please note that the LWO applies to those contracts where the Consultant has achieved a cumulative dollar contracting amount with the City. Therefore, even if the LWO is inapplicable to this contract, change orders to this contract or the entering into of subsequent contracts may make them subject to compliance with the LWO. Furthermore, the contract may become subject to the LWO if the status of the Consultant's employees change (i.e., additional employees are hired) so that Consultant falls within the scope of the Ordinance.

7.3 Data Security

Consultant agrees that any and all information furnished by City shall be deemed proprietary and confidential. All such information, to the extent previously, presently or subsequently disclosed to Consultant and/or processed and derived by Consultant services is the property of City and such property shall be deemed and treated as "Confidential Information" of City. Consultant acknowledges that such Confidential Information may contain information provided and/or generated by third-parties. Consultant agrees that such Confidential Information shall not be disclosed to any third party without written permission from City, except as required by law. Consultant shall not use the Confidential Information except to perform Consultant's services as directed by City.

All facilities, devices, networks and services used to store, deliver, process, backup or purge Confidential Information will employ administrative, physical, technical, and procedural safeguards and best practices at a level sufficient to secure Confidential Information from unauthorized access, destruction, use, modification, or disclosure. Such measures will be no less protective than those used to secure Consultant's own information of a similar type, and in no event less than reasonable in view of the type and nature of the information involved. It is the City's expectation that Consultant, at its own expense, shall perform annual audits for any data centers that house Confidential Information, using an independent third-party audit that meets industry standards applicable to the services under this Agreement, and provide the audit report or certification upon request to City. 20. Consultant will retain

Confidential Information until deleted by City or City-authorized third party, or for a time period mutually agreed upon by the parties to this Agreement.

Upon termination or expiration of this Agreement, Consultant will ensure that all Confidential Information is securely transferred to City within thirty (30) calendar days. Consultant will ensure that any transfer of Confidential Information is accomplished by methods that are compatible with the relevant City systems, and that City will have access to all Confidential Information during any such transfer. Consultant shall securely dispose of all Confidential Information when requested by City and Consultant will provide written notification to City once all Confidential Information has been securely disposed of.

Consultant shall report to City any data compromise or unauthorized access to Confidential Information within twenty-four (24) hours after Consultant discovers such data compromise or unauthorized access. Consultant will take commercially reasonable measures to address any such data compromise or unauthorized access in a timely manner. Except as otherwise required by law, Consultant will not provide notice to end users or other entities of any such data compromise or unauthorized access without written permission from City. Consultant will promptly reimburse City in full for all fees and costs incurred by City in any investigation, remediation or litigation resulting from any such data compromise or unauthorized access, including identity protection and restoration services for each person, who in the City's sole discretion, could be impacted by identity theft.

Consultant shall maintain procedures designed to protect the confidentiality and integrity of all City-issued user credentials and privileged access accounts. Shared use of City-issued user accounts, administrator accounts, passwords, tokens, or other authentication mechanisms shall be prohibited unless expressly authorized in writing by the City for a specific operational purpose. Consultant shall ensure that access to City systems and data is limited to authorized personnel with a demonstrated business need and that all authentication credentials are protected from unauthorized disclosure or use.

7.4 Indemnification

Vendor shall indemnify, defend, and hold the City of San Leandro, San Leandro, harmless from and against all claims, losses, damages, or costs arising from or in any way related to Vendor's breach of the foregoing warranties. This indemnification shall not be subject to any limitations of remedies or warranties which are contained in this or any other agreement and shall survive termination of this or any other agreement between the parties hereto or thereto.

7.5 Records and Audits

The selected consultants must maintain auditable records, documents and papers for inspection by authorized City representatives. Before the City approves a contract, the selected consultants may be required to undergo an audit evaluation to verify proper accounting and financial procedures.

7.6 Incurred Expenses

There is no express or implied obligation for the City to reimburse Proposers for any costs or expenses incurred in preparing Proposals in response to this RFP, and the City will not reimburse Proposers for these costs or expenses, nor will the City pay any subsequent costs associated with the provision of any additional information or presentations, or to procure a contract for these Services.

The City is not responsible for any cost(s) incurred by a Proposer in preparing and/or submitting a Proposal in response to this RFP. The City will also not be responsible for any costs associated with preparing and/or participating in any systems demonstrations requested of the Proposer's products and Services.

7.7 Authorized Signatures

The proposal must be executed personally by the vendor or duly authorized partner of the partnership or duly authorized officer of the corporation. If executed by an agent, a power of attorney or other evidence of authority to act on behalf of the vendor shall accompany the proposal to become a valid offer.

7.8 Rights to Submitted Material

It shall be understood that all Proposals, responses, inquiries, or correspondence relating to or in reference to this RFP, and all reports, charts, and Proposals or referencing information submitted in response to this RFP, shall become the property of the City, and will not be returned. The City will use discretion with regard to disclosure of proprietary information contained in any response, but cannot guarantee information will not be made public. As a government entity, the City is subject to making records available for disclosure.

7.9 Confidential Information

Any written, printed, graphic, electronic, or magnetically recorded information furnished by the City for the Proposer's use are the sole property of the City. This proprietary information includes, but is not limited to, customer requirements, customer lists, marketing information, and information concerning City employees, products, services, prices, operations, security measures, and subsidiaries.

The Proposer and its employees shall keep this confidential information in the strictest confidence, and will not disclose it by any means to any person except with City approval, and then only to the extent necessary to perform the work under the contract. These confidentiality obligations also apply to the Proposer's employees, agents, and subcontractors and Proposer shall be liable for a breach of the confidentiality obligations by any such party. On termination of the contract, the Proposer, its employees, agents, and subcontractors will promptly return any confidential information in its possession to the City.

7.10 Waiver of Claims

Each Offeror by submission of a response to this RFP waives any claims it has or may have against the City, and their respective employees, officers, members, directors and partners; The City's Representative and its employees, officers, members, directors and partners; and the City, its employees, officers and elected officials, agents, representatives, that are connected with or arising out of this RFP, including, the administration of the RFP, the RFP evaluation, and the selection of qualified Proposers. Submission of proposal indicates Proposer's acceptance of the evaluation technique. Without limiting the generality of the foregoing, each Proposer acknowledges that the basis of selection and that the evaluations shall be made public in accordance with applicable law and waives any claim it has or may have against the above-named persons, due to information contained in such evaluations.

7.11 Statutory Information

Any contract or agreement resulting from this RFP shall be construed in accordance with the laws of the State of California, and ordinances of San Leandro. Any litigation between the parties arising out of, or in connection with, the contract shall be initiated and prosecuted in federal or state court in the City of San Leandro, County of Alameda, State of California.

7.12 Non-Discrimination Clause

During the performance of the contract, the Contractor and all subcontractors will not discriminate against any employee or applicant for employment because of race, color, creed, religion, ancestry, national origin, sex, sexual orientation, disability, age, marital status, or status with regard to public assistance. The Contractor and all subcontractors will take affirmative action to ensure that all employment practices are free of such discrimination. Such employment practices include, but are not limited to, the following: hiring, upgrading, demotion, transfer, recruitment or recruitment advertising, layoff, termination, rates of pay or other forms of compensation, and selection for training, including apprenticeship.

7.13 Force Majeure

Neither Party shall be in default by reason of any failure in performance of the resulting contract if such failure is proximately caused by causes beyond their reasonable control and without the fault or negligence of said Party including, without limitation, unforeseeable acts of nature; terrorism or other acts of public enemy; war and epidemics or quarantine restrictions ("force majeure"). If either Party is delayed at any time in the progress of the work governed by the contract by force majeure, the delayed Party shall notify the other Party in writing of such delay, as soon as is practical, of the commencement thereof and shall specify the cause(s) of such delay in the notice. The notice shall be hand-delivered or mailed certified-return receipt and shall make a specific reference to this provision. The delayed Party shall cause such delay to cease as soon as practicable and shall notify the other party in writing when it has done so. The time of completion shall be extended by contract modification for a period of time equal to the time that results or effects of such delay prevent the delayed Party from performing in accordance with this contract.

However, this extension shall not prejudice, limit, or otherwise alter either Party's right to terminate this Agreement if the delayed performance remains commercially unfeasible or impossible.

7.14 Policy Compliance

The Proposer shall, as a condition of being considered for award of the contract, require each of its agents, officers, and employees to abide by any provided City policies prohibiting sexual harassment, firearms, and smoking, as well as all other reasonable work rules, safety rules, or policies regulating the conduct of persons on City property at all times while performing duties pursuant to the contract. The Proposer agrees and understands that a violation of any of these policies or rules will constitute a breach of the contract and will be sufficient grounds for immediate termination of the contract by the City.

7.15 Compliance with Federal, State, City, and Local Laws

Proposals must comply with all federal, state, and local laws. Any vehicles or equipment shall contain all standard safety, emission, and noise control requirements required for the types and sizes of equipment at the time of their manufacture. The contractor agrees, during the performance of work or service, to comply with all applicable codes and ordinance of the City of San Leandro, County of

Alameda, or the State of California, as they may apply, as these laws may now read or as they may hereafter be changed or amended.

7.16 Patents and Copyrights

The successful vendor agrees to protect the City from claims involving infringements of patents and/or copyrights.

7.17 Invalid, Illegal, or Unenforceable Provisions

In case any one or more of the provisions contained in the Contract shall for any reason be held to be invalid, illegal, or unenforceable in any respect, such invalidity, illegality, or unenforceability shall not affect any other provision thereof and this contract shall be considered as if such invalid, illegal, or unenforceable provision had never been contained herein.

7.18 City Property

The use of any and all City property by Contractor or its agents must be approved in advance by the City.

7.19 Rights of Use

The Contractor agrees that the City will own and have the right to use, reproduce and apply as it desires, any data, reports, analyses and materials which are collected or developed by the Contractor or anyone acting on behalf of the Contractor as a result of this contract.

7.20 Ownership of Data and Transition

Any and all City data stored on the Contractor's servers or within the Contractor's custody is the sole property of the City. The Contractor, subcontractor(s), officers, agents, and assigns shall not make use of, disclose, sell, copy or reproduce the City's data in any manner, or provide to any entity or person outside of the City without the express written authorization of the City.

In the event resulting Agreement is terminated for any reason, or upon expiration, and in addition to all other rights to property set forth, the Selected Proposer shall:

- a. Incur no further financial obligations for materials, Services, or facilities under the Agreement without prior written approval of the City;
- b. Terminate all purchase orders or procurements and any subcontractors and cease all work, except as the City may direct, for orderly completion and transition; and
- c. Make available to the City, at no cost, all City data stored within the system, stored on the Contractor's servers, or within the Contractor's custody, within fifteen (15) days of termination or City request. Such data shall be provided in a machine-readable format as agreed-upon by the parties. In addition, the Contractor shall support a data transition period of no less than ninety (90) calendar days, during which the City will be provided reasonable access to extract, validate, and transition its data to a successor system or environment.

In the event resulting Agreement is terminated for any reason, or upon expiration, and in addition to all other rights to property set forth, the City shall:

- d. Retain ownership of all data, work products, and documentation, created pursuant to the resulting Agreement

5.21 Insurance Requirements

Before commencing services, Consultant, at its own cost and expense, shall procure the types and amounts of insurance and satisfy the insurance requirements incorporated in the Consulting Services Agreement. Consultant shall provide proof satisfactory to City of such insurance that meets the requirements of this section and under forms of insurance satisfactory in all respects, and that such insurance is in effect prior to beginning work. Consultant shall maintain the insurance policies required by this section throughout the term of this Agreement. The cost of such insurance shall be included in the Consultant's bid or proposal. Consultant shall not allow any subcontractor to commence work on any subcontract until Consultant has obtained all insurance required herein for the subcontractor(s) and provided evidence to City that such insurance is in effect. VERIFICATION OF THE REQUIRED INSURANCE SHALL BE SUBMITTED AND MADE PART OF THIS AGREEMENT PRIOR TO EXECUTION. Consultant shall maintain all required insurance listed herein for the duration of this Agreement.

1 Workers' Compensation.

1.2 General Requirements. Consultant shall, at its sole cost and expense, maintain Statutory Workers' Compensation Insurance and Employer's Liability Insurance for any and all persons employed directly or indirectly by Consultant. The Statutory Workers' Compensation Insurance and Employer's Liability Insurance shall be provided with limits of not less than \$1,000,000 per accident. In the alternative, Consultant may rely on a self-insurance program to meet these requirements, but only if the program of self-insurance complies fully with the provisions of the San Leandro Labor Code. Determination of whether a self-insurance program meets the standards of the San Leandro Labor Code shall be solely in the discretion of the Contract Administrator.

The Workers' Compensation policy shall be endorsed with a waiver of subrogation in favor of the entity for all work performed by the Consultant, its employees, agents, and subcontractors.

1.3 Submittal Requirements. To comply with Subsection 1, Consultant shall submit the following:

- a. Certificate of Liability Insurance in the amounts specified in the section; and
- b. Waiver of Subrogation Endorsement as required by the section.

2 Commercial General and Automobile Liability Insurance.

2.1 General Requirements. Consultant, at its own cost and expense, shall maintain commercial general liability insurance for the term of this Agreement in an amount not less than \$2,000,000 and automobile liability insurance for the term of this Agreement in an amount not less than \$1,000,000 per occurrence, combined single limit coverage for risks associated with the work contemplated by this Agreement. If a Commercial General Liability Insurance or an Automobile Liability form or other form with a general aggregate limit is used, either the general aggregate limit shall apply separately to the work to be performed under this Agreement or the general aggregate limit shall be at least twice the required occurrence limit. Such coverage shall include but shall not be limited to, protection against claims arising from bodily and personal injury, including death resulting therefrom, and damage to property resulting from activities contemplated under this Agreement, including the use of owned and non-owned automobiles.

2.2 Minimum Scope of Coverage. Commercial general coverage shall be at least as broad as Insurance Services Office Commercial General Liability occurrence form CG 0001 (most recent edition) covering comprehensive General Liability on an “occurrence” basis. Automobile coverage shall be at least as broad as Insurance Services Office Automobile Liability form CA 0001, Code 1 (any auto). No endorsement shall be attached limiting the coverage.

2.3 Additional Requirements. Each of the following shall be included in the insurance coverage or added as a certified endorsement to the policy:

- a. The Insurance shall cover on an occurrence or an accident basis, and not on a claims-made basis.
- b. City, its officers, officials, employees, and volunteers are to be covered as additional insureds as respects: liability arising out of work or operations performed by or on behalf of the Consultant; or automobiles owned, leased, hired, or borrowed by the Consultant.
- c. Consultant hereby agrees to waive subrogation which any insurer or contractor may require from vendor by virtue of the payment of any loss. Consultant agrees to obtain any endorsements that may be necessary to effect this waiver of subrogation.
- d. For any claims related to this Agreement or the work hereunder, the Consultant's insurance coverage shall be primary insurance as respects the City, its officers, officials, employees, and volunteers. Any insurance or self-insurance maintained by the City, its officers, officials, employees, or volunteers shall be excess of the Consultant's insurance and shall not contribute with it.

2.4 Submittal Requirements. To comply with Subsection 4.2, Consultant shall submit the following:

- a. Certificate of Liability Insurance in the amounts specified in the section;
- b. Additional Insured Endorsement as required by the section;
- c. Waiver of Subrogation Endorsement as required by the section; and
- d. Primary Insurance Endorsement as required by the section.

3 Professional Liability Insurance.

3.1 General Requirements. Consultant, at its own cost and expense, shall maintain for the period covered by this Agreement professional liability insurance for licensed professionals performing work pursuant to this Agreement in an amount not less than \$2,000,000 covering the licensed professionals' errors and omissions. Any deductible or self-insured retention shall not exceed \$150,000 per claim.

3.2 Claims-Made Limitations. The following provisions shall apply if the professional liability coverage is written on a claims-made form:

- a. The retroactive date of the policy must be shown and must be before the date of the Agreement.
- b. Insurance must be maintained and evidence of insurance must be provided for at least 5 years after completion of the Agreement or the work, so long as commercially available at reasonable rates.

- c. If coverage is canceled or not renewed and it is not replaced with another claims-made policy form with a retroactive date that precedes the date of this Agreement, Consultant shall purchase an extended period coverage for a minimum of 5 years after completion of work under this Agreement.
- d. A copy of the claim reporting requirements must be submitted to the City for review prior to the commencement of any work under this Agreement.

3.3 Submittal Requirements. To comply with Subsection 3, Consultant shall submit the Certificate of Liability Insurance in the amounts specified in the section.

4 Cyber Liability Insurance.

4.1 General Requirements. Consultant, at its own cost and expense, shall maintain cyber liability insurance for the term of this Agreement in an amount not less than \$1,000,000.00 per occurrence. Coverage shall be sufficiently broad to respond to the duties and obligations as is undertaken by Consultant in this Agreement and shall include, but not be limited to, claims involving infringement of intellectual property, including but not limited to infringement of copyright, trademark, trade dress; invasion of privacy violations; information theft; damage to or destruction of electronic information; release of private information; alteration of electronic information; extortion; and network security. The policy shall provide coverage for liabilities for financial loss resulting or arising from acts, errors, or omissions, in rendering technology services:

- Violation or infringement of any right of privacy, including breach of security and breach of security/privacy laws, rules or regulations globally, now or hereinafter constituted or amended;
- Data theft, damage, unauthorized disclosure, destructions, or corruption, including without limitation, unauthorized access, unauthorized use, identity theft, theft of personally identifiable information or confidential City information in whatever form, transmission of a computer virus or other type of malicious code; and participation in a denial of service attack on third party computer systems;
- Loss or denial of service;
- No cyber terrorism exclusion;

Such coverage must include technology/professional liability including breach of contract, privacy and security liability, privacy regulatory defense and payment of civil fines, payment of credit card provider penalties, and breach response costs, including without limitation, notification costs, forensic analysis, credit protection services, call center services, identity theft protection services, and crisis management/public relations services.

4.2 Claims-Made Limitations. The following provisions shall apply if the cyber liability coverage is written on a claims-made form:

- a. The retroactive date of the policy must be shown and must be before the date of the Agreement.
- b. Insurance must be maintained, and evidence of insurance must be provided for at least 5 years after completion of the Agreement or the work, so long as commercially available at reasonable rates.

c. If coverage is canceled or not renewed and it is not replaced with another claims-made policy form with a retroactive date that precedes the date of this Agreement, Consultant shall purchase an extended period coverage for a minimum of 5 years after completion of work under this Agreement.

d. A copy of the claim reporting requirements must be submitted to the City for review prior to the commencement of any work under this Agreement.

4.3 Additional Requirements. A certified endorsement to include contractual liability shall be included in the policy.

4.4 Submittal Requirements. To comply with Subsection 4, Consultant shall submit the Certificate of Liability Insurance in the amounts specified in the section.

5 All Policies Requirements.

5.1 Acceptability of Insurers. All insurance required by this section is to be placed with insurers with a Bests' rating of no less than A:VII.

5.2 Verification of Coverage. Prior to beginning any work under this Agreement, Consultant shall furnish City with complete copies of all Certificates of Liability Insurance delivered to Consultant by the insurer, including complete copies of all endorsements attached to the policies. All copies of Certificates of Liability Insurance and certified endorsements shall show the signature of a person authorized by that insurer to bind coverage on its behalf. If the City does not receive the required insurance documents prior to the Consultant beginning work, it shall not waive the Consultant's obligation to provide them. The City reserves the right to require complete copies of all required insurance policies at any time.

5.3 Deductibles and Self-Insured Retentions. Consultant shall disclose to and obtain the written approval of City for the self-insured retentions and deductibles before beginning any of the services or work called for by any term of this Agreement. At the option of the City, either: the insurer shall reduce or eliminate such deductibles or self-insured retentions as respects the City, its officers, employees, and volunteers; or the Consultant shall provide a financial guarantee satisfactory to the City guaranteeing payment of losses and related investigations, claim administration and defense expenses.

5.4 Wasting Policies. No policy required by this Section 4 shall include a "wasting" policy limit (i.e. limit that is eroded by the cost of defense).

5.5 Endorsement Requirements. Each insurance policy required by Section 4 shall be endorsed to state that coverage shall not be canceled by either party, except after 30 days' prior written notice has been provided to the City.

5.6 Subcontractors. Consultant shall include all subcontractors as insureds under its policies or shall furnish separate certificates and certified endorsements for each subcontractor. All coverages for subcontractors shall be subject to all of the requirements stated herein.

6 Submittal of Proof of Insurance Coverage. All certificates of insurance and original endorsements effecting coverage required in this Section 4 must be electronically submitted through the City's online insurance document management program. Contractor shall comply with all requirements provided by City related to the online insurance document management program.

7 Remedies. In addition to any other remedies City may have if Consultant fails to provide or maintain any insurance policies or policy endorsements to the extent and within the time herein required, City

may, at its sole option exercise any of the following remedies, which are alternatives to other remedies City may have and are not the exclusive remedy for Consultant's breach:

- Obtain such insurance and deduct and retain the amount of the premiums for such insurance from any sums due under the Agreement;
- Order Consultant to stop work under this Agreement or withhold any payment that becomes due to Consultant hereunder, or both stop work and withhold any payment, until Consultant demonstrates compliance with the requirements hereof; and/or
- Terminate this Agreement.